

**CV-26-007417 In Re BERMUDES, JUANITA – Petitioner’s Petition for Approval for Transfer of Structured Settlement Payment Rights by and Between Juanita Bermudes and MIC-BRY8 LLC Pursuant to California Insurance Code 10134 – DENIED without prejudice.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The proposed transfer does not appear to be in the payee's best interest. Berkshire Hathaway has a hardship program that will pay Ms. Bermudes over \$40,000 more for the same transfer. In addition, it does not appear Ms. Bermudes was aware at the time of filing her declaration that Petitioner is required to pay the first \$1,500.00 towards the cost of independent professional advice. Instead, Ms. Bermudes did not seek any professional advice. Accordingly, the petition is DENIED without prejudice.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: f5bc34199ca765b7cf222b37641d0185df99083f14bccf3fdef6dfdb00f8a6c7

CV-26-007417 – In Re BERMUDES, JUANITA – Petitioner’s Petition for Approval for Transfer of Structured Settlement Payment Rights by and Between Juanita Bermudes and MIC-BRY8 LLC Pursuant to California Insurance Code 10134 – DENIED without prejudice.

The proposed transfer does not appear to be in the payee's best interest. Berkshire Hathaway has a hardship program that will pay Ms. Bermudes over \$40,000 more for the same transfer. In addition, it does not appear Ms. Bermudes was aware at the time of filing her declaration that Petitioner is required to pay the first \$1,500.00 towards the cost of independent professional advice. Instead, Ms. Bermudes did not seek any professional advice.

Accordingly, the petition is DENIED without prejudice.